

## Ram Chandra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 June 2019 · WRIT-C No. 19813 of 2019 · WRIT - C No. 19813 of 2019 · **Writ dismissed; petitioner relegated to s.127 appeal.**

### HEADNOTE

Once a final electricity assessment is produced, a writ seeking to quash it is not entertained. The consumer is relegated to the statutory appeal under Section 127; the appellate authority may decide the appeal in accordance with law. The Court described that appeal as lying under Section 127 of the Electricity Supply Code, 2005.

### FACTUAL SUMMARY

Ram Chandra sought quashing of an electricity assessment of Rs.10,25,150 plus Rs.22 other charges. After an adjournment for production of the final order, the licensee's counsel produced a final assessment dated 13 May 2019, said to have been sent by registered post on 15 May 2019, and supplied a copy in court. The petitioner denied receipt, alleged that his 28 March 2019 objection had not been considered, and relied on Meenu Gupta and Ashok Kumar.

### HOLDING-UNITS

#### HOLDING-UNIT · EA2003::127

alternative remedy — appeal against final assessment

#### HOLDING

A writ petition challenging a final electricity assessment will not be entertained when a statutory appeal under Section 127 is available. The petition is dismissed on the ground of alternative remedy; the consumer may approach the appellate authority, who may decide the appeal in accordance with law. ¶ 1

**FLAG** Court attributed Section 127 to the Electricity Supply Code, 2005; the statutory appeal is under EA 2003 s.127.

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE FINAL ASSESSMENT SUFFERED FROM NON-APPLICATION OF MIND FOR NOT CONSIDERING THE PETITIONER'S OBJECTION DATED 28.03.2019

Left to the s.127 appellate authority ¶ 1

#### NOT DECIDED — WHETHER THE CONTROVERSY WAS COVERED BY MEENU GUPTA OR ASHOK KUMAR

¶ 1

### TABLE OF AUTHORITIES

| AUTHORITY                                                                               | PROPOSITION | HOW TREATED | CITED BY   | TREATMENT |
|-----------------------------------------------------------------------------------------|-------------|-------------|------------|-----------|
| <i>Meenu Gupta v. State of U.P.</i><br>Writ-C No. 3872 of 2018,<br>decided on 31.1.2018 |             |             | petitioner | Referred  |
| <i>Ashok Kumar v. State of U.P.</i><br>2008 (6) ADJ 660 (DB)                            |             |             | petitioner | Referred  |

